

CodeXX DTDK

Non-Disclosure Agreement (NDA) — Version 1.0 (English)

Last updated: 27 June 2026

Unilateral agreement — the Receiving Party undertakes to keep the Disclosing Party's information confidential.

Parties

Disclosing Party: William Karol Di Cioccio, a sole trader registered under VAT no. IT02224180667, based in Italy, developer and owner of the CodeXX DTDK project ("Discloser").

Receiving Party: the person or entity that signs this agreement and receives Confidential Information from the Discloser ("Recipient").

The parties are collectively referred to as the "Parties".

1. Definitions

"Confidential Information": any technical, commercial, financial or strategic information disclosed by the Discloser to the Recipient in relation to the CodeXX DTDK project, including by way of example:

- software architecture, algorithms, source code, design of the AST/CFG engine, LuaU sandbox and internal mechanisms;
- Architecture Decision Records (ADRs) and internal technical documentation;
- preview builds, release candidates, pre-release binaries;
- product roadmap, business plans, pricing structure, go-to-market strategies;
- information on customers, design partners or ongoing negotiations;
- any other information designated as confidential at the time of disclosure, orally or in writing.

"Purpose": the technical and/or commercial evaluation of the CodeXX DTDK Software for a potential partnership, beta-testing, collaboration or commercial agreement between the Parties.

"Affiliates": entities controlling, controlled by or under common control with the Recipient.

2. Confidentiality Obligations

2.1 General obligation

The Recipient undertakes to keep all Confidential Information received from the Discloser strictly confidential and not to disclose it to third parties without the Discloser's prior written consent.

2.2 Standard of care

The Recipient undertakes to protect the Confidential Information with the same degree of care it uses for its own confidential information, and in any case with no less than reasonable diligence.

2.3 Limited use

The Recipient will use the Confidential Information solely for the Purpose. Any use outside the Purpose requires the Discloser's prior written consent.

2.4 Limited access

The Recipient will limit access to the Confidential Information to its employees, contractors or Affiliates who need to know it for the Purpose, and only provided they are bound by confidentiality obligations at least equivalent to those of this agreement.

3. Exclusions

The confidentiality obligations do not apply to information that the Recipient can document:

- was public at the time of disclosure or became public thereafter without the Recipient's fault;
 - was already in the Recipient's possession before disclosure by the Discloser, as shown by pre-existing records;
 - was lawfully received from a third party not bound by confidentiality towards the Discloser;
 - was independently developed by the Recipient without use of the Confidential Information;
 - must be disclosed by law or court order, subject to prompt written notice to the Discloser and adoption of measures to limit disclosure.
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4. Specific Prohibitions

In addition to the general obligations, the Recipient expressly undertakes not to:

- attempt to replicate, recreate or develop competing products based on the Confidential Information received;
 - use the Confidential Information to gain competitive advantage outside the Purpose;
 - reverse-engineer, decompile or disassemble any preview builds or binaries received;
 - disclose the very existence of this agreement or of ongoing negotiations without the Discloser's prior written consent;
 - reproduce, copy or distribute any internal technical documentation (including ADRs) received from the Discloser.
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5. Intellectual Property

This agreement transfers no intellectual-property right in the Confidential Information or the CodeXX DTDK Software to the Recipient. All Confidential Information remains the exclusive property of the Discloser.

Any feedback, suggestion or contribution provided by the Recipient regarding the Software during evaluation or beta-testing creates no intellectual-property right in favor of the Recipient. The

Discloser is free to use such feedback without obligation of compensation, save as otherwise agreed in writing.

This agreement neither constitutes nor implies the grant of any license over the Software or the Confidential Information, save strictly as necessary for the Purpose.

6. Term

This agreement takes effect on signature by both Parties and remains in force for three (3) years, save earlier termination by written consent of both Parties.

Confidentiality obligations regarding Confidential Information that constitutes trade secrets under Legislative Decree 63/2018 (implementing Directive EU 2016/943) remain in force for the duration of the applicable legal protection, regardless of the expiry of this agreement.

On expiry or termination, the Recipient will return or destroy, at the Discloser's option, all Confidential Information received in material or electronic form, and confirm this in writing within ten (10) days.

7. Remedies for Breach

The Recipient acknowledges that breach of the confidentiality obligations would cause the Discloser irreparable harm for which monetary damages may not be an adequate remedy.

In the event of breach or threatened breach, the Discloser is entitled, in addition to damages, to seek interim or injunctive relief before the competent court, without the need to post security.

The Recipient undertakes to promptly notify the Discloser of any unauthorized disclosure of Confidential Information of which it becomes aware, even if unintentional.

8. Governing Law and Jurisdiction

This agreement is governed by Italian law, with particular reference to Legislative Decree 63/2018 on trade secrets and the Italian Civil Code.

For any dispute arising from this agreement, the Parties agree to the exclusive jurisdiction of the Court of L'Aquila, Italy. For Recipients resident or established outside the European Union, the Parties may agree in writing on an alternative forum.

9. Final Provisions

Assignment: the Discloser reserves the right to assign this agreement to a limited company (e.g. an S.R.L.) which it owns or controls, effective from incorporation. The Recipient will be notified in writing.

Entire agreement: this agreement constitutes the entire agreement between the Parties on confidentiality and supersedes any prior agreement on the same subject.

Amendments: any amendment must be made in writing and signed by both Parties.

Severability: if a provision is held invalid or unenforceable, the remaining provisions remain in force.

Language: this English version is operative for international Recipients; an Italian version is available. Both are governed by Italian law.

Contact: legal@codexx-dtdk.com

Signature

The Parties declare having read and understood this agreement in full and accept its terms.

Disclosing Party William Karol Di Cioccio VAT IT02224180667 Signature: _____ Date: __/__/____	Receiving Party [Company / Name] [VAT / Tax ID] Signature: _____ Date: __/__/____
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